



Glasgow Corporation (Miscellaneous Provisions) Order Confirmation Act 1974

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ELIZABETH II



1974 CHAPTER v

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to Glasgow Corporation (Miscellaneous Provisions).

[10th April 1974]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has after inquiry held before Commissioners been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Glasgow Corporation (Miscellaneous Provisions) Order Confirmation Act 1974.

Short title.

SCHEDULE

GLASGOW CORPORATION (MISCELLANEOUS PROVISIONS)

Provisional Order to make provision for the registration of premises used for certain purposes; to confer powers on the Corporation of the city of Glasgow with respect to the maintenance of watercourses, private streets and footpaths and the parking of heavy vehicles; and for other purposes.

Whereas the Corporation of the city of Glasgow (hereinafter referred to as “the Corporation” and “the city” respectively) are vested with the municipal government and administration of the city and are the local authority therein:

And whereas it is expedient that the power contained in this Order with respect to the registration and control of premises used as places of public entertainment as defined in this Order should be conferred on the Corporation:

And whereas it is expedient that the Corporation should have power to maintain the watercourses in the city, that the maintenance of the private streets and footpaths in the city should be a function of the Corporation and that the Corporation should have power to control the parking of heavy vehicles as hereinafter provided:

And whereas it is expedient that the further provisions contained in this Order should be enacted:

1936 c. 52. And whereas the purposes aforesaid cannot be effected without an order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore, in pursuance of the powers contained in the last-mentioned Act, the Secretary of State orders as follows:—

PART I

PRELIMINARY

Short title and citations.

1.—(1) This Order may be cited as the Glasgow Corporation (Miscellaneous Provisions) Order 1974.

(2) This Order may be included among the Acts and Orders which may be cited together as the Glasgow Corporation Acts 1855 to 1974.

Interpretation.

2. The following words and expressions in this Order have, unless there is something in the context repugnant to such construction, the meanings hereby assigned to them, that is to say:—

“city” means the city and royal burgh of Glasgow;

“Corporation” means the Corporation of the city;

“ Order of 1937 ” means the Glasgow Streets Sewers and Buildings Consolidation Order 1937;

PART I
—cont.

“ town clerk ” means the town clerk of the city.

1937 c. xliii.

PART II

CONTROL OF PLACES OF PUBLIC ENTERTAINMENT

3. In this Part of this Order—

Interpretation
of this Part
of Order.

“ appointed day ” means such day as may be fixed by resolution of the Corporation for the purposes of this Part of this Order;

“ place of public entertainment ” means any premises used for any of the following purposes, that is to say, dancing, music or any other entertainment of the like kind; but does not include—

(i) premises being licensed premises, registered clubs or licensed canteens all as respectively defined in the Licensing (Scotland) Acts 1959 and 1962;

(ii) premises in respect of which a licence is for the time being in force for the public performance of stage plays, concerts, or a cinematograph exhibition;

(iii) a dwelling-house wholly occupied by an individual as his residence;

(iv) any premises appropriated to, and used solely or mainly for, public religious worship;

(v) any premises used solely for instruction or training for the purposes of any club, organisation or association, or a branch of any club, organisation or association, which is accepted as a charity for income tax purposes;

“ registered ” means registered with the Corporation under this section, and “ registration ” shall be construed accordingly;

“ specified drug ” means any substance which the Corporation, with the approval of the Secretary of State, by resolution determine should, from a date to be fixed by the resolution, be included among the drugs to which section 7 (Offences in connection with conduct of places of public entertainment) of this Order applies.

4.—(1) (a) Subject to the provisions of this Part of this Order, on Registration and after the appointed day no premises in the city shall be used, of premises. whether occasionally or not, for the purposes of a place of public entertainment unless they are registered in accordance with the provisions of this section.

(b) If the owner or occupier of any premises in the city uses the premises for the purposes of a place of public entertainment or permits the premises to be used for those purposes he shall unless the premises have been so registered and the registration remains in force be guilty of an offence and liable on summary conviction to a fine not exceeding fifty pounds.

PART II
—cont.

(2) The Corporation may refuse to register or renew the registration of any premises for use as a place of public entertainment if they are satisfied that—

- (a) the premises are not structurally suitable for the purpose;
- (b) there is a likelihood of nuisance being caused by reason of the conduct, management or situation of the premises or the character of adjacent properties;
- (c) the premises are not provided with satisfactory means of lighting, sanitation and ventilation;
- (d) the premises are not safe for such use or the means of heating the premises are not safe;
- (e) proper precautions against fire on the premises have not been taken; or
- (f) satisfactory means of escape in case of fire and adequate fire-fighting appliances have not been provided on the premises.

(3) (a) Where application is made for registration of any premises to which this subsection applies for use as a place of public entertainment and the Corporation are not satisfied having regard to any of the matters referred to in subsection (2) of this section that the premises are suitable for use as a place of public entertainment they may instead of refusing such application by notice served on the applicant—

- (i) inform him of the fact and of the steps which would have to be taken to satisfy them as regards the said matter; and
- (ii) notify him that they will not register the said premises as a place of public entertainment unless those steps are taken (whether by the applicant or otherwise) within a specified time;

and if at the end of that time or such future time as may be allowed by the Corporation the application is not granted it shall be deemed to have been refused.

(b) This subsection applies to halls, offices and premises connected with churches or chapels or with charitable organisations.

(4) (a) The Corporation may, on registering or renewing the registration of any premises for use as a place of public entertainment, impose conditions as to—

- (i) the maintenance of order and safety;
- (ii) the number of persons who may be allowed to be on the premises at any time;
- (iii) the taking of proper precautions against fire, and the maintenance in proper order of means of escape in case of fire, fire-fighting appliances and means of lighting, sanitation and ventilation of the premises;
- (iv) the maintenance in safe condition of the premises and of means of heating the premises;
- (v) the hours of opening and closing the premises for use as a place of public entertainment so as to ensure that nuisance is not likely to be caused to occupants of other premises in the neighbourhood.

(b) Any person concerned in the conduct or management of a place of public entertainment who contravenes any condition imposed under this subsection, or who knew or had reasonable cause to suspect that such a condition was being contravened by some other person, shall be guilty of an offence and liable on summary conviction to a fine not exceeding twenty pounds:

Provided that if the person against whom proceedings are brought under this paragraph proves that he has used all due diligence to secure that the condition in question was complied with, he shall be acquitted of the offence under this paragraph.

(5) Before registering any premises for use as a place of public entertainment under this section the Corporation shall consider—

(i) the suitability of the premises for such use having regard to the matters referred to in subsection (2) of this section; and

(ii) the conditions (if any) that should be imposed in relation to such matters if the premises are to be registered for such use;

and the Corporation shall consider those matters before renewing the registration of the premises if in the opinion of the Corporation there has been any material change in the circumstances affecting those matters or any of them.

(6) The Corporation may at any time revoke the registration of any premises on any ground upon which, pursuant to subsection (2) of this section, they are authorised to refuse to register or renew the registration of those premises, or if they are satisfied that any condition imposed under subsection (4) of this section has not been complied with.

(7) An application for registration or renewal of registration of any premises under this section shall be made in writing to the Corporation by the owner or occupier of the premises to which the application relates and every such application shall state—

(a) the address or situation of the premises to which the application relates;

(b) the name and address of the applicant and his trade or calling during the six months preceding the application;

(c) such other information regarding the premises to be registered, the persons concerned or intended to be concerned in the conduct or management of the premises and the manner in which the premises are proposed to be used as the Corporation may reasonably require;

and the applicant shall supply such plans of the premises as the Corporation may reasonably require, and any application made or plans supplied to the Corporation aforesaid shall on delivery become the property of the Corporation.

(8) Any person making application for registration or renewal of registration of any premises under this section shall, when making application, pay to the Corporation in respect thereof a fee of one pound.

(9) (a) Any person making application for registration or renewal of registration of any premises under this section shall give public

PART II
—cont.

notice of the application (identifying the premises) in such form as the Corporation may prescribe—

- (i) by displaying the notice on or near the premises, in a place where it can conveniently be read by the public, for fourteen days beginning with the date of the application; and
- (ii) by advertisement in a local newspaper circulating in the city not later than seven days after the date of the application;

and any person who fails to give any such notice as is required by this paragraph shall be guilty of an offence and liable on summary conviction to a fine not exceeding twenty pounds.

(b) Any person objecting to an application for registration of any premises under this section shall give notice in writing of his objection to the Corporation and shall serve a copy of such notice upon the applicant, stating in general terms the grounds of the objection, not later than twenty-one days after the date of the application, and when considering the application the Corporation shall take such objection into account.

(10) Before refusing to register or renew the registration of any premises or revoking the registration of any premises the Corporation shall give to the person applying for registration or renewal of registration or in whose name the premises are registered an opportunity of appearing before and of being heard by a committee of the Corporation and, if so required by him, the Corporation shall within seven days of their decision give to him a statement of the grounds upon which it was based.

(11) Any person aggrieved by the refusal of the Corporation to register or renew the registration of any premises under this section, or by the revocation of any such registration or by any condition imposed under this section, may, within twenty-one days from the date on which such refusal or revocation, or the imposition of the condition, is notified to him, appeal to the sheriff; and on any such appeal the sheriff may by order confirm or set aside such refusal or revocation or confirm, vary or set aside any such condition, or impose any condition which the Corporation would have been entitled to impose by virtue of this section, and the Corporation shall give effect to such order accordingly.

(12) Registration under this section shall, unless previously revoked, remain in force for such period not exceeding thirteen months as may be fixed by the Corporation on the grant of the licence.

Saving for
existing
places of
public
entertainment.

5. It shall be lawful for any person who—

- (a) immediately before the appointed day was using any premises in the city as a place of public entertainment; and
- (b) had before that day duly applied for the registration of those premises under the foregoing section;

to continue to use those premises as a place of public entertainment until he is informed of the decision with regard to his application.

6. The following provisions of the Glasgow Corporation Consolidation (General Powers) Order 1960 shall, with any necessary modification (including in the case of section 180 (Constables may enter licensed etc. premises) of the said Order the addition of a reference to premises in the city used, whether occasionally or not, as a place of public entertainment to the premises therein mentioned), apply and have effect for the purposes of this Part of this Order as if the said provisions were re-enacted in this Order, that is to say:—

PART II
—cont.
Application
of provisions
of Glasgow
Corporation
Consolidation
(General
Powers)
Order 1960.
1960 c. iii.

Section 177 (Power to enter premises);

Section 180 (Constables may enter licensed etc. premises);

Section 182 (Granting of warrants to enter certain premises);

Section 183 (Penalty for keeping premises for certain purposes or being found thereon);

Section 184 (Penalty for re-letting premises to convicted persons or knowingly suffering same to be used after notice);

Section 186 (Power of police constables to take certain offenders into custody);

Section 188 (Additional penalty in case of certain previous convictions);

Section 196 (As to penalties and recovery thereof);

Section 200 (Decisions of sheriff or sheriff substitute to be final (so far as relating to subsection (2) of section 4 (Registration of premises) of this Order); and

Section 205 (Crown rights).

7. If a place of public entertainment is conducted in a disorderly manner or has been habitually used for an unlawful purpose or for indecent displays or if any drug to which the Drugs (Prevention of Misuse) Act 1964 or the Dangerous Drugs Act 1965 applies, or any specified drug, is sold, supplied or otherwise distributed on the premises by a person to any other person resorting thereto, any person concerned in the conduct or management of the place of public entertainment who knew or had reasonable cause to suspect that the premises were so used or so conducted as aforesaid or that such sale, supply or distribution was taking place on the premises and any person who let the premises or otherwise made the premises available to any person by whom he knew or had reasonable cause to suspect that an offence in connection with such use has been committed shall be guilty of an offence and liable on summary conviction to a fine not exceeding fifty pounds:

Offences in
connection
with conduct
of places
of public
entertainment.
1964 c. 64.
1965 c. 15.

Provided that nothing in this section shall apply to the administration of a drug or a specified drug for the purposes of medical treatment or in accordance with the directions of a medical practitioner registered pursuant to the Medical Act 1956.

1956 c. 76.

8. If in the opinion of the Corporation it becomes unnecessary that premises of any particular class or description should remain subject to the provisions of this Part of this Order they may by resolution determine that as from a date to be fixed by the resolution such class or description of premises shall be exempted from such provisions.

As to
exemption
of certain
premises.

PART III

MISCELLANEOUS AND GENERAL

Power to
maintain
watercourses.

9.—(1) The Corporation shall have power to maintain any water-courses in the city and to carry out, in relation to any such watercourse, such works as may be necessary, including, if necessary, works of culverting, to ensure that the flow of water therein is not obstructed or impeded.

(2) Any authorised officer of the Corporation shall, on producing if so required some duly authenticated document showing his authority, have the right to enter any land or premises at all reasonable hours for the purposes of—

- (a) inspecting any watercourse or any culvert or other works;
- (b) taking any action or executing any work which the Corporation are empowered to take or carry out under the foregoing subsection:

Provided that admission to any premises shall not, except in any case of emergency, be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier of the premises.

(3) In the exercise of the powers conferred upon them by this section the Corporation shall do as little damage as may be and shall make good all damage done.

1950 c. ii

(14 & 15 Geo. 6).

(4) The provisions of section 16 (Compensation for damages) of the Glasgow Corporation Sewage Order 1950 shall apply in relation to the exercise of the powers conferred on the Corporation by this section as if the said powers had been conferred on the Corporation by the said Order of 1950.

(5) The powers conferred by subsections (1) and (2) of this section shall not be exercised in relation to any watercourse forming part of any waterworks of the Lower Clyde Water Board or in relation to any land or premises forming part of any such waterworks without the prior consent in writing of the said board.

(6) For the purpose of this section—

- (a) “watercourse” includes any stream but shall not include any part of the river or firth of Clyde within the jurisdiction of the Clyde Port Authority; and
- (b) “waterworks” has the same meaning as in the Water (Scotland) Act 1946.

1946 c. 42.

(7) (a) Nothing in this section shall authorise the Corporation to execute any works in, through or under or so as to affect any operational land or any works belonging to any statutory undertakers and used by them for the purposes of their undertaking without the consent of such statutory undertakers which may be given subject to reasonable conditions, but such consent shall not be unreasonably withheld and any question whether such consent is being unreasonably withheld or whether any condition subject to which any consent was given was reasonable shall be referred to an arbiter to be agreed between the

parties or, failing such agreement, to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other party.

PART III
—cont.

(b) In this subsection—

“operational land” means, in relation to statutory undertakers, land which is used for the purpose of carrying on their undertaking and land in which an interest is held for that purpose, not being land which, in respect of its nature and situation, is comparable rather with land in general than with land which is used, or in which interests are held, for the purpose of the carrying on of statutory undertakings;

“statutory undertakers” means any body, company or person authorised by any enactment to supply electricity, gas or water, and the Post Office.

10.—(1) Section 36 (Private streets may be declared public streets) of the Order of 1937 shall be read and have effect as if—

As to private
streets and
private
footpaths.

(a) in place of subsections (1) and (2) thereof there were inserted the following subsection:—

“(1) The Corporation may in their option and on such terms and conditions as they think fit by minute of the Corporation declare any private street or court or any part of any such street or court to be a public street”;
and

(b) subsection (4) thereof were omitted.

(2) The Order of 1937 shall be read and have effect as if in place of section 38 (Footpaths may be declared public footpaths) thereof there were inserted the following section:—

“38. The Corporation may in their option and on such terms and conditions as they think fit by minute of the Corporation declare any footpath in a public street or any part thereof to be a public footpath.”

(3) After section 38 (Footpaths may be declared public footpaths) of the Order of 1937 there shall be inserted the following section:—

“Appeals. 38A.—(1) Subject to the provisions of subsection (2) of this section, if the proprietors of any lands and heritages adjoining and having a right of access by any private street are aggrieved by—

(i) a decision of the Corporation to declare the said street or any part thereof to be a public street; or

(ii) a decision of the Corporation as to any term or condition on which the said street or any part thereof is declared to be a public street;

they may appeal to the Secretary of State against the Corporation's decision.

(2) An appeal under subsection (1) of this section shall be competent only at the instance of the proprietors of lands and heritages which have a greater frontage adjoining the

*Glasgow Corporation (Miscellaneous Provisions)
Order Confirmation Act 1974*

PART III
—cont.

said street, or the part thereof to which the decision appealed against relates, and are valued in the last completed Valuation Roll at the date on which the said appeal is brought at a greater gross annual value than all other lands and heritages adjoining and having a right of access by the said street or the said part thereof.

(3) Subject to the provisions of subsection (4) of this section, if the proprietors of any lands and heritages adjoining any footpath in a public street are aggrieved by—

- (i) a decision of the Corporation to declare the said footpath or any part thereof to be a public footpath; or
- (ii) a decision of the Corporation as to any term or condition on which the said footpath or any part thereof is declared to be a public footpath;

they may appeal to the Secretary of State against the Corporation's decision.

(4) An appeal under subsection (3) of this section shall be competent only at the instance of the proprietors of lands and heritages which have a greater frontage adjoining the said footpath, or the part thereof to which the decision appealed against relates, and are valued in the last completed Valuation Roll at the date on which the said appeal is brought at a greater gross annual value than all other lands and heritages adjoining the said footpath or the said part thereof.

(5) An appeal under this section shall be made by notice to the Secretary of State within twenty-eight days of the notification by the Corporation to the appellants of the decision against which the appeal is brought:

Provided that where such notification is given by the Corporation to the appellants on different dates, the said period of twenty-eight days shall be reckoned from the latest of such dates.

(6) The notice of appeal shall in all cases state the circumstances in which the appeal is brought, and a copy thereof shall be served by the appellants upon the Corporation not later than the date upon which the principal notice is given to the Secretary of State.

(7) Within twenty-eight days after service on them of the notice of appeal the Corporation shall state in writing their reasons for the decision appealed against, together with their observations, if any, on the matters stated in the notice of appeal, and shall send such written reasons or observations to the Secretary of State and to the appellants.

(8) Before determining any such appeal the Secretary of State shall, if either the appellants or the Corporation so request, afford to each of them an opportunity of appearing before, and being heard by, a person appointed in that behalf by the Secretary of State.

(9) If the Secretary of State thinks fit in any case where such a request is made, he may, instead of complying with that request, cause a local inquiry to be held in connection with the appeal; and subsections (2) to (9) of section 210 (Local inquiries) of the Local Government (Scotland) Act 1973 shall apply to any such inquiry.

PART III
—cont.

1973 c. 65.

(10) The decision of the Secretary of State on the appeal shall be final and binding on both the appellants and the Corporation."

(4) Section 37 (Private streets may be declared public streets by dean of guild) of the Order of 1937 is hereby repealed.

(5) Section 5 (Interpretation) of the Order of 1937 shall be read and have effect as if—

- (a) in the definition of "public footpath" for the words "which at the date of the passing of the Act confirming this Order is maintained by the Corporation as a public footpath in pursuance of the Police Acts or a footpath which after that date" there were substituted the words "entered in the register of public footpaths or a footpath which"; and
- (b) in the definition of "public street" there were omitted the words "after the date of the passing of the Act confirming this Order".

11. Nothing in the provisions of section 36 of the Order of 1937 as substituted by this Order shall apply in relation to Newton Place and the provisions of section 36 of the Order of 1937 shall continue to apply to the said street.

Saving in
respect of
Newton Place.

12.—(1) In this section—

Parking of
heavy vehicles
and trailers.

"the appointed day" means such day as may be fixed by resolution of the Corporation subject to and in accordance with the provisions of this section;

"designated street" means any street or part of a street which is for the time being authorised to be used as a parking place for heavy vehicles or trailers in terms of an order made by the Corporation under section 28 of the Road Traffic Regulation Act 1967;

1967 c. 76.

"heavy vehicle" means a mechanically propelled vehicle having an unladen weight exceeding 30 cwt. but does not include any vehicle which is constructed solely for the carriage of passengers and is adapted to carry not more than seven passengers exclusive of the driver;

"night" means the interval between nine o'clock in the evening and seven o'clock in the morning of the next succeeding day or such other times within those hours as the Corporation may determine;

"postal packet" means a letter, postcard, reply postcard, newspaper, printed packet, sample packet or parcel and every article transmissible by post and includes a telegram;

PART III
—cont.

“ trailer ” means a vehicle, not less than 10 feet in length, drawn by a motor vehicle.

(2) As from the appointed day, no person shall without the permission of a constable or of the Corporation or of an authorised officer of the Corporation cause or permit a heavy vehicle or a trailer to wait in any street in the city other than a designated street at night or on a Sunday:

Provided that nothing in this subsection shall apply—

- (a) so as to prevent a vehicle waiting in a street other than a designated street for so long as may be necessary to enable the vehicle, if it cannot conveniently be used for such purpose without waiting in that street, to be used in connection with any building operation or demolition, the removal of any obstruction or potential obstruction to traffic, the maintenance, improvement or reconstruction of the street or the erection, laying, placing, maintenance, testing, alteration, repair or removal of any structure, works or apparatus in, on, under or over the street or premises adjoining the street;
- (b) to a vehicle being used for fire brigade, ambulance, police or defence purposes (including civil defence purposes);
- (c) to a vehicle waiting in a street other than a designated street while any gate or other barrier at the entrance to premises to which the vehicle requires access or from which it has emerged is opened or closed;
- (d) to a vehicle waiting in a street other than a designated street while goods or materials are being loaded thereon or unloaded therefrom or while postal packets addressed to premises adjacent to that street are being unloaded from the vehicle or, having been unloaded therefrom, are being delivered, or while postal packets are being collected from premises or posting boxes adjacent to that street;
- (e) to a public service vehicle as defined in section 117 of the Road Traffic Act 1960 in the ordinary course of its use as such;
- (f) to a vehicle waiting in any case where the person in control of the vehicle—
 - (i) is required by law to stop;
 - (ii) is obliged to do so in order to avoid an accident; or
 - (iii) is prevented from proceeding by circumstances outside his control.
- (g) to a vehicle waiting in a street other than a designated street for a period not exceeding ten minutes in circumstances in which it is reasonably necessary for the person in control of the vehicle to allow it so to wait.

(3) (a) No resolution shall be passed for the purposes of this section unless the Corporation are satisfied that there is in the city a sufficient number of designated streets or other parking places available for the parking of heavy vehicles at night or on a Sunday.

(b) It shall be the duty of the Corporation to ensure so far as lies within their power that at all times after the appointed day there shall be such sufficient number of designated streets or other parking places as aforesaid.

PART III
—cont.

(4) Any person contravening the provisions of subsection (2) of this section shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding twenty pounds or, in the case of a second or subsequent offence, fifty pounds.

(5) The Corporation shall cause to be published in a local newspaper circulating in the city notice—

(a) of the passing of any resolution to fix the appointed day and of the day fixed thereby; and

(b) of the general effect of the provisions of this section coming into operation as from that day;

and the day so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(6) Either—

(a) a copy of any such newspaper containing any such notice; or

(b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of publication.

13. The costs, charges and expenses of and incidental to the preparing for, obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation and shall be allocated amongst the several undertakings and services of the Corporation in such proportions as the Corporation may deem expedient.

Costs of Order

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